

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Santosh Prakash	Team: Squad #08	CCRB Case #: 201602031	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 03/11/2016 12:30 AM	Location of Incident: Outside 1538 Webster Avenue, and at the 42nd Precinct stationhouse	18 Mo. SOL 9/11/2017	Precinct: 42
Date/Time CV Reported Fri, 03/11/2016 9:13 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 03/11/2016 9:13 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Deonarin Mangroo	18256	941287	042 PCT
2. SGT Sincerae Tinsley	01002	945052	042 PCT
3. POM Andrew Freeman	19103	947006	042 PCT
4. LT Gerard Sawicki	00000	935239	042 PCT
5. POF Samantha Raffo	26618	954254	042 PCT
6. POM Edgar Duncan	20691	946961	042 PCT
7. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Darell Dennison	3962	943159	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Deonarin Mangroo	Discourtesy: Outside of 1538 Webster Avenue, Police Officer Deonarin Mangroo spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . LT Gerard Sawicki	Abuse: At the 42nd Precinct stationhouse, Lieutenant Gerard Sawicki did not obtain medical treatment for § 87(2)(b)	B . Unsubstantiated
C . POM Andrew Freeman	Abuse: At the 42nd Precinct stationhouse, Police Officer Andrew Freeman did not obtain medical treatment for § 87(2)(b)	C . Unsubstantiated
D . Officers	Force: At the 42nd Precinct stationhouse, officers used physical force against § 87(2)(b)	D . Officer(s) Unidentified
E . POM Edgar Duncan	Abuse: At the 42nd Precinct stationhouse, Police Officer Edgar Duncan did not obtain medical treatment for § 87(2)(b)	E . Unsubstantiated
F . POF Samantha Raffo	Abuse: At the 42nd Precinct stationhouse, Police Officer Samantha Raffo searched § 87(2)(b)'s cell phone.	F . Substantiated
G . POF Samantha Raffo	Abuse: At the 42nd Precinct stationhouse, Police Officer Samantha Raffo did not obtain medical treatment for § 87(2)(b)	G . Substantiated

Officer(s)	Allegation	Investigator Recommendation
H . SGT Sincerae Tinsley	Abuse: At the 42nd Precinct stationhouse, Sergeant Sincerae Tinsley did not obtain medical treatment for § 87(2)(b)	H . Substantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

On March 11, 2016, at approximately 12:30 am, § 87(2)(b) was standing his vehicle at a designated bus stop on Claremont Parkway in the Bronx, when he was stopped by PO Deonarin Mangroo and PO Samantha Raffo of the 42nd Precinct. § 87(2)(b) provided the officers with license and registration. While the vehicle belonged to his girlfriend, § 87(2)(b) § 87(2)(b) was using it with her permission. After the officers returned to their vehicle with the documents, § 87(2)(b) exited the BMW, to speak with a friend standing by on the sidewalk. When he did so, PO Mangroo exited and approached § 87(2)(b) instructing him to re-enter his vehicle. When § 87(2)(b) questioned the order, PO Mangroo allegedly called him a “smartass” (**Allegation A**). PO Mangroo then handcuffed and placed § 87(2)(b) under arrest for § 87(2)(b). Lt. Gerard Sawicki and PO Andrew Freeman then transported § 87(2)(b) to the 42nd Precinct stationhouse, where § 87(2)(b) alleged the following: that Lt. Sawicki and PO Freeman did not obtain medical treatment for him (**Allegations B, C**); that officers kicked his feet while lodging him in a cell (**Allegation D**); and that PO Edgar Duncan did not obtain medical treatment for him (**Allegation E**). § 87(2)(b)'s vehicle was transported to the stationhouse by PO Raffo, who removed § 87(2)(b)'s cell phone for safekeeping. At the stationhouse, PO Raffo accessed § 87(2)(b)'s cell phone, searched his contacts, and called § 87(2)(b) instructing her to come retrieve her vehicle (**Allegation F**). Still lodged, § 87(2)(b) continued to ask PO Raffo and the desk sergeant, Sgt. Sincerae Tinsley, for medical attention – neither obtained medical treatment for him (**Allegations G, H**). § 87(2)(b) was ultimately released with a parking violation notice (for standing in a bus stop), and a summons for § 87(2)(b), both written by PO Mangroo. § 87(2)(g), § 87(4-b) (See: B.R. 01-§ 87(2)(b) Statement; B.R. 03 – § 87(2)(b) Statement; B.R. 06, 07 – § 87(2)(b) Statements)

There is no video documentation of the incident.

§ 87(2)(b), § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) rejected mediation. A notice of claim has not been filed (B.R. 02 – Complainant History).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Subject Officer CCRB Histories

- § 87(2)(b) filed one previous complaint § 87(2)(b) [REDACTED]
- PO Deonarin Mangroo has been a member of service for 9 years: he has not been a subject in any prior CCRB complaints.
- PO Samantha Raffo has been a member of service for 3 years: she has not been a subject in any prior CCRB complaints.
- Sgt. Sincerae Tinsley has been a member of service for 8 years: she was a subject in one previous complaint, closed as Victim Uncooperative.

- Lt. Gerard Sawicki has been a member of service for 11 years: he has not been a subject in any prior CCRB complaints.
- PO Andrew Freeman has been a member of service for 7 years: he has been a subject in 6 prior complaints, on 6 allegations, none of which were substantiated. § 87(2)(g)
- PO Edgar Duncan has been a member of service for 7 years: he has been a subject in 6 prior complaints, on 12 allegations, none of which were substantiated. § 87(2)(g)

Findings and Recommendations

Subject Officer Identification

§ 87(2)(g) § 87(2)(b) stated that three white or Hispanic male officers repeatedly kicked his feet, to remove his shoes, while in the holding area outside the cells. § 87(2)(b) stated that two of the three officers were the same who transported him to the stationhouse, but could not further describe the subject officers or better articulate the alleged force (B.R. 01 – § 87(2)(b) Statement).

PO Freeman and Lt. Sawicki acknowledged transporting § 87(2)(b) but denied any involvement in lodging him. Sgt. Tinsley stated that PO Freeman lodged § 87(2)(b) possibly with another officer (she could not recall who this was, or if Lt. Sawicki was involved). PO Ronald Kowalski, a white male working stationhouse security, did not recall lodging any prisoners for the relevant time period, and denied interacting with § 87(2)(b) whose photograph he did not recognize. None of the officers interviewed could account for who lodged § 87(2)(b) (See: B.R. 08 – 15, Officer Statements; B.R. 21 – 27, Officer Memo Books).

§ 87(2)(b) a prisoner in the adjacent female cell, testified § 87(2)(g) about a physical interaction between officers and § 87(2)(b) which took place in front of her in the holding area. § 87(2)(b) stated that a white or Hispanic male officer briefly “swiped” his foot against § 87(2)(b)’s shoes, possibly attempting to remove them. However, § 87(2)(b) did not describe any force, and firmly stated that this officer did not kick § 87(2)(b). § 87(2)(b) believed that approximately four male officers were involved in lodging § 87(2)(b) – three white or Hispanic males, and one tall, light-skinned black male – but could not distinguish between the non-black males (BR 06, 07 – § 87(2)(b) Statements).

§ 87(2)(g)

Allegation A: Discourtesy – Word: Outside of 1538 Webster Avenue, Police Officer Deonarin Mangroo spoke discourteously to § 87(2)(b)

§ 87(2)(g)

In his CCRB testimony, § 87(2)(b) stated that he and his friend § 87(2)(b) had decided to visit Gravity Lounge, a nightclub at 1538 Webster Avenue, located at the intersection of Claremont Avenue and Webster Avenue. Other friends had accompanied § 87(2)(b) and § 87(2)(b) in a separate vehicle (also a BMW), and the two vehicles reached Gravity Lounge simultaneously, both pulling into the bus stop on Claremont Avenue, directly outside the club. § 87(2)(b) stood behind the other vehicle, discharging § 87(2)(b) to scout the premises while he found parking. After § 87(2)(b) left, § 87(2)(b)

§ 87(2)(b) stayed idling in the bus stop with the other vehicle, trying to decide on where to park. In approximately two minutes, a police RMP pulled up on the opposite side of the street, flashing its lights. Unaware that they were the subject of police attention, § 87(2)(b) and the other BMW remained in the bus stop for two more minutes, at which time he heard the RMP horn. § 87(2)(b) now saw that the officer inside was gesturing with his hand, telling them to leave the bus stop. As the lead BMW complied and moved out of the stop, § 87(2)(b) attempted to do the same, his vehicle already moving forward. As § 87(2)(b) was about to pull out, the same police vehicle suddenly pulled up behind him with its sirens on. PO Mangroo and PO Raffo then approached § 87(2)(b) and asked him why he had not moved sooner. § 87(2)(b) stated that he was not paying attention. When the officers returned to their vehicle with his documents, § 87(2)(b) saw § 87(2)(b) exit the club and approach from the sidewalk. At this time, § 87(2)(b) exited the BMW, and told § 87(2)(b) that he was being issued a ticket. As soon as he exited – before he conversed any further with § 87(2)(b) – PO Mangroo stepped out and approached § 87(2)(b) instructing him to re-enter his vehicle. § 87(2)(b) stated that he now challenged the order: he asked PO Mangroo why he was required to re-enter if he was just getting a traffic ticket. Immediately thereafter – § 87(2)(b) stated that there were no further exchanges – PO Mangroo said: “you want to be a smartass? You are going to jail.” § 87(2)(b) did not raise his voice at any point in this encounter, and remained calm while turning around for PO Mangroo, who proceeded to handcuff him (B.R. 01 – § 87(2)(b) Statement).

§ 87(2)(b) did not corroborate that officers spoke discourteously to § 87(2)(b) (B.R. 05 – § 87(2)(b) Statement).

PO Mangroo testified that he conducted a vehicle stop after § 87(2)(b) failed to leave the bus stop, even after he honked from behind with his turret lights on. When the officers returned to the RMP with his documents, § 87(2)(b) exited the BMW, approached the rear bumper, and appeared to be moving towards the sidewalk. PO Mangroo did not know what § 87(2)(b) was trying to do, but immediately instructed him, via the RMP’s megaphone, to return to his vehicle. When § 87(2)(b) refused to do so, PO Mangroo and PO Raffo exited the RMP and ordered him to re-enter his vehicle. § 87(2)(b) now walked back to the driver’s side door, but still refused to re-enter. Leaning against the door, § 87(2)(b) raised his voice and said he was not obligated to go back inside, stating “fuck this, I didn’t do anything.” Approximately six people were gathered outside the club at this time. Since § 87(2)(b) was being uncooperative and “belligerent,” PO Mangroo decided to arrest § 87(2)(b) for § 87(2)(b), for his and the officers’ safety. When PO Mangroo told § 87(2)(b) that he was going to be arrested, he replied “no problem,” and turned around to present his wrists for hand-cuffing. As PO Mangroo handcuffed § 87(2)(b) he was physically compliant, but remained vocal and profane, stating “I hate you fucking cops.” PO Mangroo denied calling § 87(2)(b) a “smartass” at any point. (See: B.R. 09 – PO Mangroo Statement; B.R. 21 – PO Mangroo Memo Book).

PO Raffo generally corroborated PO Mangroo and denied that he called § 87(2)(b) a “smartass.” (B.R. 08 – PO Raffo Statement)

§ 87(2)(g)
It is therefore recommended that **Allegation A** be closed as **Unsubstantiated**.

Allegation D: Force – Physical Force: At the 42nd Precinct stationhouse, officers used physical force against § 87(2)(b)

§ 87(2)(b) stated that his feet were repeatedly kicked at by the three officers who lodged him, while he was handcuffed in the holding area outside the cell. § 87(2)(b) also stated that the officers, while kicking him, were simultaneously attempting to pull him down the floor, though he was never actually brought down. § 87(2)(b) was very unclear about how the officers were jointly kicking him – he could not articulate the intensity, direction, or frequency of the kicking, which lasted for approximately two minutes. However, § 87(2)(b) eventually realized that the kicking was intended to cause his shoes to come off. While his shoes ultimately did come off, § 87(2)(b) did not recall what caused this to happen. The officers did not say anything to § 87(2)(b) when they were kicking him. While § 87(2)(b) was not physically resistant, he acknowledged that he had started yelling after being removed to the stationhouse, vocally protesting his arrest (B.R. 01 – § 87(2)(b) Statement).

The investigation obtained testimony from § 87(2)(b) who was lodged in the cell directly next to § 87(2)(b)s, and observed the interaction described by § 87(2)(b). § 87(2)(b) stated that § 87(2)(b) – irate but not physically resistant – was handcuffed and surrounded by approximately four officers, all of whom were holding him. One of these officers used his foot to “swipe” at § 87(2)(b)s shoes, in a semi-circular motion that made contact with the arc of his sneakers. § 87(2)(b) speculated that the officer was attempting to remove § 87(2)(b)s sneakers, though she was ultimately uncertain if they said anything to this effect. § 87(2)(b) stated that exactly one officer “swiped” and that the action was singular, consisting of one unrepeatable motion. § 87(2)(b) stated that the officer used the side of his own foot in “swiping,” and not the front or back of his foot. § 87(2)(b) did not see § 87(2)(b)s shoes come off as a result of the action, but later noticed his shoes lying around in the holding area. § 87(2)(b) was certain that § 87(2)(b) was not kicked in any manner. § 87(2)(b) could not describe the officers, beyond stating that they were three white or Hispanic males, and one tall, light-skinned black male. The officer who “swiped” was one of the non-black males (BR 06, 07 – § 87(2)(b) Statements).

As described earlier, the investigation was unable to identify the officers who lodged § 87(2)(b) all of the eight interviewed officers denied lodging him, and none had knowledge of any force used against him (See: B.R. 08 – 15, Officer Statements; B.R. 21 – 27, Officer Memo Books).

§ 87(2)(g)

It is therefore recommended that **Allegation D** be closed as **Officers Unidentified**.

Allegation B: Abuse: At the 42nd precinct stationhouse, Lieutenant Gerard Sawicki did not obtain medical treatment for § 87(2)(b)

Allegation C: Abuse: At the 42nd precinct stationhouse, Police Officer Andrew Freeman did not obtain medical treatment for § 87(2)(b)

Allegation E: Abuse: At the 42nd precinct stationhouse, Police Officer Edgar Duncan did not obtain medical treatment for § 87(2)(b)

Allegation G : Abuse: At the 42nd precinct stationhouse, Police Officer Samantha Raffo did not obtain medical treatment for § 87(2)(b)

Allegation H: Abuse: At the 42nd precinct stationhouse, Sergeant Sincerae Tinsley did not obtain medical treatment for § 87(2)(b)

§ 87(2)(b) alleged that he requested medical attention three times: while being escorted into the stationhouse, he told his two transporting officers that he needed to see a doctor for § 87(2)(b); he later told a black male officer, who came to check on him in the cell, that he needed to see a doctor; finally,

shortly prior to being released, he told a white female officer that he needed to see a doctor. None of the officers obtained medical treatment for § 87(2)(b) (B.R. 01 – § 87(2)(b) Statement).

Lt. Sawicki and PO Freeman, who acknowledged transporting § 87(2)(b) denied that he asked for a doctor or mentioned anything about heart pain, at any point in their interactions with him. PO Duncan acknowledged briefly interacting with § 87(2)(b) in the cells, after Sgt. Tinsley instructed him to calm him down. PO Duncan acknowledged interacting with § 87(2)(b) when he was lodged, but stated that he was highly irate and excessively vocal in protesting his arrest, and said he could not converse with him to any practical effect. PO Duncan denied that § 87(2)(b) told him he needed to see a doctor (See: B.R. 10, 11, 13 – Lt. Sawicki, PO Freeman, PO Duncan Statements).

PO Raffo stated that § 87(2)(b) told her, shortly prior to his release, that he needed to go to the hospital. PO Raffo told § 87(2)(b) that he could “go on his own time,” and told him that he was going to be released shortly, without approximating when. § 87(2)(b) did not articulate any specific medical reasons, and there was nothing concerning about his appearance – he neither presented nor complained of any ailments or injuries. PO Raffo consulted Sgt. Tinsley at the desk, who agreed with PO Raffo that § 87(2)(b) could seek medical attention independently. PO Raffo was not aware of any prior requests for medical attention. Sgt. Tinsley denied having any knowledge of § 87(2)(b) requesting medical attention (B.R. 08 – PO Raffo Statement, B.R. 12 – Sgt. Tinsley Statement).

§ 87(2)(b) corroborated that § 87(2)(b) was being irate for the entirety of his time in the cell, loudly protesting his arrest. § 87(2)(b) stated that § 87(2)(b) only asked Sgt. Tinsley for medical attention, on exactly one occasion, shortly prior to his release. When § 87(2)(b) told Sgt. Tinsley that he needed to go to the hospital, she replied that it would delay his release, and told him that he would be released soon if he calmed down. § 87(2)(b) refused to calm down, again citing his wrongful arrest (B.R. 06, 07 – § 87(2)(b) Statements).

Per Patrol Guide procedure 210-04, officers are required to obtain medical/psychiatric treatment for a prisoner in custody when required or requested (B.R. 28 – P.G. 210-04).

§ 87(2)(g)

It is therefore recommended that **Allegations B, C, and E** be closed as **Unsubstantiated**, and **Allegations G and H** be closed as **Substantiated**.

Allegation F: At the 42nd Precinct stationhouse, Police Officer Samantha Raffo searched § 87(2)(b)'s cell phone.

It is undisputed that PO Raffo searched § 87(2)(b)'s cell phone without his consent.

§ 87(2)(b) first suspected that his phone had been searched when PO Raffo told him, shortly prior to his release, that his girlfriend, § 87(2)(b) was en route to the stationhouse. PO Raffo informed § 87(2)(b) that the vehicle could only be released to her, the registered owner (B.R. 01- § 87(2)(b) Statement).

§ 87(2)(b) stated that she received a call from § 87(2)(b)'s phone at 12:39 am. When § 87(2)(b) answered, she was addressed by a female who identified herself as a police officer. The officer asked if § 87(2)(b) had permitted § 87(2)(b) to use her vehicle. When she said yes, the officer instructed § 87(2)(b) to retrieve her vehicle in person at the 42nd Precinct stationhouse, where § 87(2)(b) was being held. § 87(2)(b) provided the investigation with a screenshot of her call log display, which shows an incoming call at 12:39 am from "§ 87(2)(b)" – her shorthand for § 87(2)(b) (B.R. 03, 04 – § 87(2)(b) Statement, Call Log Screenshot).

PO Raffo stated that she knew from the registration paperwork that the vehicle belonged to § 87(2)(b). Because § 87(2)(b) had been evasive and inconsistent about who owned the car, PO Raffo wanted to verify that he was using the car with § 87(2)(b)'s permission. Having already removed his cell phone from the vehicle for safekeeping, PO Raffo now decided to see if she could find § 87(2)(b)'s phone number on § 87(2)(b)'s phone. While she and PO Mangroo may have spoken about needing to verify permission, they did not discuss any specific methods or protocols for obtaining § 87(2)(b)'s contact information. PO Raffo did not attempt to use any departmental resources to search for § 87(2)(b)'s contact information. PO Raffo did not run any database checks to determine if the vehicle had been reported stolen, and never consulted any other officer, including Sgt. Tinsley, on the matter (B.R. 08 – PO Raffo Statement).

PO Raffo ultimately accessed the cell phone's unlocked home screen, clicked Contacts, and then clicked on Favorites. Under Favorites, § 87(2)(b) appeared as the first name on a list of contacts. PO Raffo initially stated that she then dialed § 87(2)(b)'s" phone number into her own phone – she could not recall if this was her personal or department-issued phone, both of which she had at the time. Upon being presented with the call log display submitted by § 87(2)(b) PO Raffo stated that she was only "pretty sure" that she used her own phone. When she reached § 87(2)(b) PO Raffo verified that § 87(2)(b) had her permission, advised that he was in custody, and then asked how she wanted the vehicle released – to § 87(2)(b) or to her. PO Raffo stated that § 87(2)(b) opted to retrieve the vehicle herself (B.R. 08 – PO Raffo Statement).

PO Mangroo stated that while Sgt Tinsley may have instructed him to release the vehicle to its rightful owner, he did not have any personal doubts regarding § 87(2)(b)'s rights to the vehicle. PO Mangroo never performed any database checks to determine if the vehicle was stolen, and never discussed the need to obtain § 87(2)(b)'s contact information for verbal confirmation of permission. Sgt. Tinsley stated that she was aware that § 87(2)(b) had been at the stationhouse when § 87(2)(b) was released. However, Sgt. Tinsley denied any involvement in PO Raffo's actions. Ultimately, no officer acknowledged knowing about or seeing PO Raffo search § 87(2)(b)'s cell phone or call § 87(2)(b) (B.R. 09, 12 – PO Mangroo Statement, Sgt. Tinsley Statement).

The investigation subpoenaed § 87(2)(b)'s cell phone records for the relevant time period (11:30 pm to 1:30 am): an incoming call from § 87(2)(b)'s phone number was logged at 12:39 am, with no prior or subsequent calls to or from § 87(2)(b)'s number (B.R. 18 – § 87(2)(b) Call Records). The event documents and the command log jointly show that § 87(2)(b) was arrested at 12:23 am, transported to the stationhouse at 12:29 am, and lodged at 12:35 am (B.R. 19, B.R. 20 – Event Documents, Command Log).

In Riley v. California, the U.S. Supreme Court established that the warrantless search of a prisoner's cell phone is generally impermissible: "Our answer to the question of what police must do before searching a cell phone seized incident to an arrest is accordingly simple— get a warrant." (B.R. 29 – Riley v. California, 573 US __ (2014))

§ 87(2)(g) [Redacted]
[Redacted]
[Redacted] It is therefore recommended that **Allegation F** be closed as **Substantiated**.

§ 87(2)(g), § 87(4-b) [Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]
[Redacted]

Squad: 8

Investigator:	_____	_____	_____
	Signature	Print	Date
Squad Leader:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date